

Sahana Murthy vs Chethan Kumar T.J on 17 April, 2025

KABC030239212021

Presented on : 01-04-2021
Registered on : 01-04-2021
Decided on : 17-04-2025
Duration : 4 years, 0 months, 16 days

IN THE COURT OF THE 30TH ADDL.CHIEF
JUDICIAL MAGISTRATE, BENGALURU

Dated: This the 17th day of April- 2025
Present: Sri. Thimmaiah.G. B.A., LL.B.

XXX ACJM, Bengaluru.

C.C.No.8643/2021

(Judgment U/s.355 of Cr.P.C.)

Date of Offence	2018
Complainant	State by Subramanyapura Police Station. R/by. Learned Senior APP V/s.
Accused	Chethan Kumar T.J R/at. No.27/7, 1st Cross, New Bank Colony, Annapurneshwari Temple Road, Bengaluru City-560062.
Judgment	2 C.C.No.8643/2021
Offences	U/s. 323, 354, 384, 504, 506 of IPC
Plea/Charge	Recorded on 30.06.2022 and accused is Pleaded not guilty.
Examination U/sec., 313 of Cr.P.C recorded on: Final Oder	On 17.04.2025 Accused is Acquitted
Date of Order	17.04.2025

(Thimmaiah.G)
30th A.C.J.M., B'lore.

JUDGMENT

The Police Sub-Inspector of Subramanyapura Police Station has filed charge sheet against accused for the offences punishable U/s. 323, 354, 384, 504, 506 of IPC.

Judgment 3 C.C.No.8643/2021

02. The brief facts of the prosecution case is as follows:-

It is alleged that, in the year 2018 January, the Cw.1 due to some problems she had borrowed hand loan of Rs.20,000/-

from the accused for interest and the Cw.1 repaid the entire amount by paying Rs. 2,500/- every week till March-2018, further the accused in furtherance common intention to gain the wrongful benefit from the Cw.1, the accused had filed the cheque bounce case against the Cw.1 where in the Cw.1 had given those cheques for security purpose even she had paid the entire amount to the accused and the Cw.1 got scared from the accused and she again paid Rs.20,000/- to the accused. Further the accused in furtherance of common intention, went to the house of Cw.1 which is situated within the Jurisdiction of Subramanyapura Police Station, Flat No.302, Ballota Apartment, in front of Himalaya School, Judgment 4 C.C.No.8643/2021 Munivenkatappa Layout and pickup the quarrel with the Cw.1 and abused her in filthy language and insulted the modesty of the Cw.1 by pulling her hand in the public and assaulted the Cw.1 with his hands on her checks and further the accused dragged the daughter of Cw.1 ie., Cw.2 in the public and insulted her modesty further the accused given life threat to the Cw.1, if she not pay the amount he will hang the Cw.1 and thereby the accused has committed the above said offences punishable U/s. 323, 354, 384, 504, 506 of IPC.

03. After filing the charge sheet, cognizance taken for the offence punishable U/s. 323, 354, 384, 504, 506 of IPC against the accused. The accused was released on bail. Copy of the prosecution papers furnished to the accused as required U/Sec.207 of Cr.P.C. Heard before charge. Charge has been framed and read over to the accused, wherein he has denied the same and claim to be tried.

Judgment 5 C.C.No.8643/2021

04. In order to secure the Cw.2, 5 and Cw.1/Pw.1 witnesses this court issued Summons, NBW and Proclamation. But even though the sufficient time given to the concerned police, the concerned police failed to secure these witnesses. In this regard relied the Judgment of the Madras High Court, passed in The State (Tamil Nadu) V/s Veerappan and Others, on 24 March 1980, where in it held as below:

" In State of Karnataka v. Subramania Setti 1980 Mad LJ 138: (1980 CA LJ NOC 129), a Division Bench of the Karnataka High Court referring to the decisions in State of Mysore v. Narasimha Gowda (1964) 2 Mys LJ 241: (AIR 1965 Mys 167) and the State of Mysore v. Abdul Hameed Khan (1969) 1 Mys LJ 4: (1970 Cri LJ 112 (Mys)), observed that the real distinction between the two decisions is as to whether Judgment 6 C.C.No.8643/2021 there was remissness and want of diligence on the part of the prosecuting agency in producing the witnesses before the Court and therefore the principle laid down in Abdul Hameed Khan's case applied to the facts of the case with which the Division Bench was concerned. We may note here that in Abdul Hameed Khan's case, it was found on the facts that the prosecution was not at all diligent as the non-bailable warrants issued to the witnesses had neither been served nor returned to the court by the concerned police and it was therefore held that where the prosecution was not diligent in producing its witnesses and had failed to serve the bailable warrants on the witnesses and return the same the Magistrate would be justified in refusing to grant an adjournment and to proceed to acquit the accused on the material on record. We may note here that in State of Karnataka v. Subramania Setti 1980 MLJ 138 the Division Bench was dealing with a24. After carefully considering all the aforesaid decisions and the Judgment 7 C.C.No.8643/2021 views expressed therein, we are of the view that if the prosecution had made an application for the issue of summons to its witnesses either under Section 242(2) or 254(2) of the Criminal Procedural Code it is the duty of the court to issue summons to the prosecution witnesses and to secure the witnesses by exercising all the powers given to it under the Criminal Procedure Code, as already indicated by us and if still the presence of the witnesses could not be secured and the prosecution also either on account of pronounced negligence or recalcitrance does not produce the witnesses after the Court had given it sufficient time and opportunities to do so, then the Court, being left with no other alternative would be justified in acquitting the accused for want of evidence to prove the prosecution case, under Section 248, Cr. P. C., in the case of warrant cases instituted on a police report and under Section 255(1), Cr. P. C. in summons cases, and we answer the two questions referred to us in the above terms.

Judgment 8 C.C.No.8643/2021 Moreover, this case is 04 years old one. Hence, the Cw.2,

5 and Cw.1/Pw.1 witnesses are dropped/discarded. In order to prove the guilt of the accused, the prosecution has examined 04 witnesses as PW.1 to 4 and got marked 05 documents as Ex.P.1 to Ex.P.5.

05. Thereafter statement of accused under Sec.313 of Cr.P.C. is recorded, accused has denied the incriminating evidence in the prosecution case and not chosen to lead his side evidence. No documents are got marked on his behalf.

06. Heard both the side and perused the material evidence on record.

07. The following points would arise for my consideration:

POINTS

1. Whether the prosecution has been proved beyond reasonable doubt, in the Judgment 9 C.C.No.8643/2021 year 2018 January, the Cw.1 due to some problems she had borrowed hand loan of Rs.20,000/- from the accused for interest and the Cw.1 repaid the entire amount by paying Rs. 2,500/- every week till March-2018, further the accused in furtherance common intention to gain the wrongful benefit from the Cw.1, the accused had filed the cheque bounce case against the Cw.1 where in the Cw.1 had given those cheques for security purpose even she had paid the entire amount to the accused and the Cw.1 got scared from the accused and she again paid Rs.20,000/- to the accused and thereby the accused has committed an offence punishable U/s 384 of IPC?

2. Whether the prosecution has been proved beyond reasonable doubt that, Further the accused in furtherance of common intention, went to the house of Judgment 10 C.C.No.8643/2021 Cw.1 which is situated within the Jurisdiction of Subramanyapura Police Station, Flat No.302, Ballota Apartment, in front of Himalaya School, Munivenkatappa Layout and pickup the quarrel with the Cw.1 and abused her in filthy language and thereby the accused has committed an offence punishable U/s. 323, 504 of IPC?

3. Whether the prosecution has been proved beyond reasonable doubt, further the accused in furtherance common intention, insulted the modesty of the Cw.1 by pulling her hand in the public and assaulted the Cw.1 with his hands on her checks and further the accused dragged the daughter of Cw.1 ie., Cw.2 in the public and insulted her modesty and thereby the accused has committed an offence punishable U/s. 354 of IPC?

Judgment 11 C.C.No.8643/2021

4. Whether the prosecution has been proved beyond reasonable doubt, further the accused given life threat to the Cw.1, if she not pay the amount he will hang the Cw.1 and thereby the accused person committed an offence punishable U/s. 506 of IPC?

5. What order.?

o8. My findings on the above points are as follows:

Point No.1 : In The Negative Point No.2 : In The Negative Point No.3 : In The Negative Point No.4 : In The Negative Point No.5 : As per final order REASONS

9. Point No.1 to 4 : These points are inter connected to each other and have taken for discussion in common to avoid repetition of the facts and evidence. The case of the Judgment 12 C.C.No.8643/2021 prosecution is already narrated at the inception of this judgment hence, without repeating the same, I proceed to appreciate the evidence on records. Further, I have carefully perused the oral and documentary evidence on records, in my humble opinion, some portion of the evidence is irrelevant, hence without wasting much time on explaining its irrelevancy this court proceeds to appreciate the material evidence.

10. The PW.1 Smt. Leela, who is the mahazar witness to this case, in her evidence she deposed before the court that, in the year 2019 when she went to the police station, the Cw.1 had come to the police station regarding the quarrel, at that time the police had taken her signature on Ex.P1 spot mahazar and she supported to the Cw.1 in the concern of she is a women and she do now know the contents of the Ex.P1 and the police had not seized anything in her presence and she had not given any statement before the police.

Judgment 13 C.C.No.8643/2021

11. The Pw.2 Madhavan Kotian, who is also the mahazar witness to the case, he had deposed in his evidenc before the court that, he had put his signature on Ex.P1 about 2 years in the subramanyapura police station when he went to the station along with his friend and he do not the contents of the said document and the police had not seized anything in his presence.

Further, the learned Sr. APP has treated these two witnesses has hostile to the prosecution case and their evidence is not helpful to the prosecution to the prove the guilt of the accused beyond all reasonable doubt.

12. The PW.4 Madhu.K, who is the IO to the case, he has deposed in his evidence before the court that, On 10.02.2019, with the permission of the Honorable Court, he produced Cw-1 at 06-30 pm in Police Station NCR No. 199/2019, then registered a case in Police Station Crime No. Judgment 14 C.C.No.8643/2021 199/2019 and submitted the report to the Honorable Court and the superiors. On 11-07-2019, he informed the Cw-3 and 4 as Panchs, informed them of the information and as per their agreement, he conducted the Panchnama from 10-00 am to 11-00 am at the place shown by the Cw-1, On the same day, he had recorded the re-statement of Cw-1 and the statement of Cw3. On 15-01-2020, he had recorded the statement of Cw-2. On 01-02-2020, he had recorded the statement of Cw-5. Later, as the investigation was completed and the charges against the accused were prima facie proven, he had submitted the final report to the Honorable Court and the superiors,

13. In the present case material witness the Pw.1 and 3 are the mahazar witnesses and they had turned hostile to the prosecution case and the Pw.2/Cw.1 had not been secured by the concerned

police, even given the sufficient time to the police. Moreover, this case is 04 years old. Hence, the evidence Judgment 15 C.C.No.8643/2021 of the Pw.1/Cw.1 is discarded. Further the IO Pw.4 has deposed about the how he conducted the investigation and submitted the charge sheet before the court. Under such circumstances, it is difficult to believe the version of the the Pw.1, 3 to 4 who are the mahazar and IO witnesses. Moreover, in the non availability of the evidence of independent witness regarding spot mahazar, it is not safe to rely on the evidence of Pw.1, 3 to 4 in proving the guilt of the accused persons

14. It is the paramount duty of the prosecution to establish the guilt of the accused beyond all reasonable doubt. Unless the guilt is established beyond all reasonable doubt, the accused cannot be held guilty of the alleged offences.

15. On this point held in, (2016) 10 SCC 519 - AIR 2016 SC 4581 in para 56, Hon'ble Apex held thus hereunder:

"56. It is a trite proposition of law, that suspicion however grave, it cannot take the place of proof and that the prosecution in order to succeed on a criminal charge Judgment 16 C.C.No.8643/2021 cannot afford to lodge its case in the realm of "may be true" but has to essentially elevate it to the grade of "must be true". In a criminal prosecution, the court has a duty to ensure that mere conjectures or suspicion do not take the place of legal proof and in a situation where a reasonable doubt is entertained in the backdrop of the evidence available, to prevent miscarriage of justice, benefit of doubt is to be extended to the accused. Such a doubt essentially has to be reasonable and not imaginary, fanciful, intangible or non-existent but as entertainable by an impartial, prudent and analytical mind, judged on the touchstone of reason and common sense. It is also a primary postulation in criminal jurisprudence that if two views are possible on the evidence available one pointing to the guilt of the accused and the other to his innocence, the one favourable to the accused ought to be adopted."

16. In the present case, it is important to note that the material witness the Pw.1 had been discarded from the case, since not secured by the concerned police. As such the Judgment 17 C.C.No.8643/2021 accused has certainly would be entitled to benefit of the doubt, since no corroborative evidence of the witnesses against the accused to prove the prosecution case. Hence, the accused is entitled to the benefit of the reasonable doubt. By considering all these aspects the prosecution utterly failed to prove the guilt of the accused beyond all reasonable doubt. Therefore, I answer to the Point No.1 to 4 in the Negative.

17. Point No.5: In view of the Negative findings on the above Point No.1 to 4, I proceed to pass the following.

ORDER In the exercise of powers confirmed Upon me U/s.248(1) of Cr.P.C., the Accused is hereby Acquitted of the alleged offences punishable U/s.323, 354, 384, 504, 506 of IPC.

Judgment 18 C.C.No.8643/2021 The bail bond of Accused and surety extended for further 6 months in order to comply Sec.437A of Cr.P.C. Thereafter, this bail bond automatically stands cancelled.

(Dictated to the Stenographer directly on computer and after corrections made by me and then pronounced by me in the Open Court on the 17th day of April-2025) (Thimmaiah.G) 30 A.C.J.M., B'lore.

th ANNEXURE

1. LIST OF THE WITNESS EXAMINED FOR THE PROSECUTION:

P.W.1	:	Smt. Leela	
P.W.2	:	Smt. Sahana Murthy,	
P.W.3	:	Sri. Madhav Kotian	
P.W.4	:	Sri. Madhu.K	
Judgment		19	C.C.No.8643/2021

2. LIST OF THE DOCUMENTS MARKED FOR THE PROSECUTION:

Ex.P.1	:	Spot Mahazar
Ex.P1(a)	:	Signature of Pw.1
Ex.P1(b)	:	Signature of Pw.2
Ex.P1(c)	:	Signature of Pw.4
Ex.P.2	:	Statement of Pw.1
Ex.P2(a)	:	Signature of Pw.1
Ex.P.3	:	Complaint
Ex.P.3(a)	:	Signature of Pw.2
Ex.P.4	:	Requisition
Ex.P.5	:	FIR

3. LIST OF THE WITNESS EXAMINED AND DOCUMENTS MARKED FOR THE DEFENCE:

NIL

4. LIST OF THE METERIAL OBJECTS MARKED FOR THE PROSECUTION:

NIL Sd/-

(Thimmaiah.G) 30th A.C.J.M., B'lore.

Judgment 20 C.C.No.8643/2021 Judgment 21 C.C.No.8643/2021